

Court No. - 3

Case :- WRIT - C No. - 19295 of 2017

Petitioner :- Mahendra Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Narendra Kumar, Rabindra Bahadur Singh

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Krishna Murari, J.

Hon'ble Ravindra Nath Kakkar, J.

Petitioner has approached this Court challenging the demand notice dated 25.02.2017 demanding a sum of Rs. 85,417/- as outstanding charges. Learned counsel for the petitioner contends that there was outstanding dues of about 36,000/- when the electricity connection was disconnected on 15.03.2013. To support the fact, attention has been drawn to Annexure-3 to the writ petition which is a electricity disconnection slip. In effect, petitioner is disputing the correctness of the bill which is purely factual in nature and appropriately ought to have been investigated by Clause 6.5 of the Electricity Supply Code, 2005. Clause 6.5 of Electricity Supply Code, 2005 provides that :-

"If a consumer disputes the accuracy of any bill, he may either make the payment under protest of (i) an amount equal to the sum claimed from him, or (ii) the electricity charges calculated on the basis of average of electricity bills of the preceding six months, whichever is less, and file a complaint with the competent authority, before the due date for payment. The complaint shall be decided within 7 days and consumer shall be informed.

(i) If the Complaint is found to be correct by the competent authority, a revised bill shall be issued within 7 days of the complaint and consumer shall be given 7 days to make the payment. The Consumer shall not be charged any late payment surcharge (and he shall be eligible for timely payment rebate, if any applicable) if the payment is made by the revised due date of payment. If payment has already been made, excess amount shall be adjusted in subsequent bills.

(ii) If the complaint was found to be incorrect the consumer shall be notified and directed to make the payment, if not already paid, as per the original bill immediately and the consumer shall be liable to pay the late payment surcharge."

Considering the facts and circumstances of the case, we dispose of this writ petition by giving liberty to the petitioner to make an application under Clause 6.5 of Electricity Supply Code, 2005 before the appropriate authority along with the certified copy of this order within two weeks with the direction to the said authority, in case, such application is made, he shall proceed and decide the same by a reasoned and speaking order within a period of two weeks from the date of production of a certified copy of this order.

Order Date :- 4.5.2017

Sumit S